

**2018 Y L R 1391**

**[Lahore]**

**Before Ayesha A. Malik and Jawad Hassan, JJ**

**CHIEF EXECUTIVE, GEPCO and 3 others---Appellants**

**Versus**

**ASGHAR ALI RANA---Respondent**

Intra Court Appeal No.389 of 2015, decided on 12th June, 2017.

**Constitution of Pakistan---**

---Art. 199--- Electricity connection---Constitutional jurisdiction of High Court---Single Judge of High Court directed the authorities to provide electricity connection to respondent---Validity---High Court was meant to protect and enforce Fundamental Rights of citizens which were being infringed by anyone---Facility of electricity was Fundamental Right of all citizens under the Constitution and particularly when life was impossible without electricity--Respondent had applied for domestic three phase connection for his house which was his Fundamental Right---Single Judge of High Court rightly observed that to provide electricity to respondent was his fundamental right which could not be denied in any manner---Division Bench of High Court declined to interfere in judgment passed by Single Judge of High Court as the same did not suffer from any illegality or jurisdictional error---Intra-court appeal was dismissed in circumstances.

Mehar Muhammad Nawaz, Ex-OG-I, Small Business Finance Corporation Multan v. Managing Director, Small Business Finance Corporation and 2 others 2009 SCMR 187 rel.

Mian Aurangzeb Mirza, Ch. Anbar Ali, Dy. Director (P&E) and Ghazanfar Abbas Rizvi, CE (P&E) GEPCO for Appellants.

Ch. Muhammad Aslam for Respondent.

Date of hearing: 12th June, 2017.

**JUDGMENT**

**JAWAD HASSAN, J.**---Through this appeal, the Appellants have called in question the order rendered in W.P. No.31061/2014 dated 22.01.2015 passed by the learned Single Judge (the "Impugned Order"), whereby the constitutional petition of the Respondent was allowed.

2. Brief facts for the disposal of instant appeal are that earlier the Respondent filed W.P. No.22214/2011 for provision of electricity connection to his premises which was remitted to the Appellants vide order dated 13.09.2012 with a direction to look into the grievance of the Respondent. The Appellants refused the request of the Respondent vide order dated 25.03.2013 for the reason that his residence is situated in Housing Scheme Gulshan-e-Azeem

Sialkot. Feeling aggrieved by the said order the Respondent filed W.P. No.31061/2014 which was allowed vide the impugned order. Hence, this Appeal.

3. Learned counsel for the Appellants submitted that the impugned order is against law and facts as the same has been passed by ignoring the fact that providing the electricity connection to the Respondent whose resident is situated at Link Burj Road, Mian Sialkot Daska Road (the "Property") i.e. within the Housing Society, is totally against the policy of GEPCO Limited unless the entire Housing Society is not electrified; that the running of 11KV system close to the Housing Society is not ground for providing electricity to an individual.

4. On the other hand learned counsel for the Respondent submitted that the writ petition has rightly been allowed as there is no illegality in the impugned order. Learned counsel also contended that to enjoy the facility of electricity is right to every citizen of Pakistan including the Respondent and that too when the same has been provided to the other persons of the locality; that he has been provided the connection by the SNGPL of the gas supply; that no one can be deprived from his/her fundamental rights guaranteed under the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), as such the instant Appeal is liable to be dismissed.

5. We have heard the arguments of the learned counsel for the parties and have perused the record.

6. From the perusal of record it reveals that the Respondent has appended with the writ petition copy of application dated 01.08.2011 for Domestic Three Phase Connection, in which he specifically mentioned that his house is not situated in any Housing Society; that a number of electricity connections have already been provided to many of the inhabitants of the locality; that he has been provided connection of sui gas; that he is ready to bear all the expenditures that may occur. The Respondent has also appended along with the petition copy of NOC issued by the Tehsil Municipal Administration showing no objection on provision of electricity connection to the Respondent as the residential building plan has been approved by the TMA. The perusal of record further depicts that in the application dated 21.05.2014 given to the Chief Executive Officer, GEPCO the Respondent has mentioned that he has purchased the land from Zarqa Qayyum, a private owner of the land and that the sponsors of the alleged colony could never get preliminary NOC from the TMA Sialkot during the last ten (10) years nor they are interested to make a housing scheme. Record further reveals that the said Colony is under objection which has not been removed so far.

7. From the above, it is crystal clear that the residential building plan of the Respondent has been approved by the TMA and they have no objection on provision of electricity connection. It is noticeable here that the TMA vide letter dated 09.05.2014 has stated that the residential building plan of the Respondent has been approved but vide letter dated 08.11.2014, showing the status of the said Gulshan Azeem Colony Daska Road, Sialkot, has stated that the approval of the Society is pending due to objections duly conveyed to applicants on 08.08.2009 but the applicants have not cleared the objections hence the layout plan is unapproved yet. The status of pendency is also conveyed to Government for information. From the above, it is explicit that the approval of the society has not been given by the TMA. In the report and parawise comments the Appellants have mentioned that it has passed the order in terms of its Policy of the Department, whereby in a housing society, if the electrification is not connected by the sponsors, the electric connection cannot be sanctioned

in favour of the individual consumer. It means that it is the Policy of the Respondents-Department that without electrification in a housing society, no individual is allowed to have an electricity connection, separately. But in the present case the situation is different, as admittedly, the alleged housing society has not yet been approved/registered by the Authority, as such does not have the status of a 'Housing Society'. The Respondent has also produced letter dated 22.04.2015, issued by the Tehsil Municipal Administration, Sialkot, through which the Respondent has been intimated that the plan of subject colony submitted by Ch. Azeem Safdar and others in TMA Sialkot has been rejected by this office, therefore, the Respondent cannot be refused supplying electricity connection because there exists no housing society and the said policy cannot have its effect upon the case of the Appellant.

8. The order dated 13.04.2017 passed by this Court in the instant Appeal reveals that in compliance of this Court's order the demand notice dated 12.04.2017 amounting to Rs.2,40,500/- has been delivered to the Appellants/Department in the Court, therefore, now the Respondent cannot be denied from issuance of electricity connection as a substantial right has been accrued in his favour. Undeniably, the Respondent is the citizen of this country and the Constitution guarantees fundamental rights to every citizen. This Court is meant to protect and enforcement of the fundamental rights of the citizens which are being infringed by anyone. To enjoy the facility of electricity is fundamental right of the all the citizens under the Constitution and particularly, in the present era when life seems to be impossible without electricity. The Respondent has given application for Domestic Three Phase Connection for his house which is admittedly his fundamental right, as such the learned Single Judge has rightly observed in the impugned order that to provide electricity to the Respondent is his fundamental right which cannot be denied in any manner and has also placed reliance on the case titled Mehar Muhammad Nawaz, Ex-OG-I, Small Business Finance Corporation Multan v. Managing Director, Small Business Finance Corporation and 2 others 2009 SCMR 187.

9. We fully agree with the finding of the learned single Judge who allowed the petition directing the appellants to provide electricity connection to the Respondent's premises as it is his fundamental right. In view of above circumstances, we see no illegality or jurisdictional error in the impugned order which has been passed in line with the dictates of law and does not warrant any interference by this Division Bench.

10. Resultantly, the instant Appeal is devoid of any merit and is accordingly dismissed.

MH/C-23/L Appeal dismissed.